

Chandra Shekhar Tiwari v. U.P. Power Corporation

Allahabad High Court · Division Bench · 8 December 2014 · WRIT-C No. 63216 of 2014 · **Writ disposed; petitioner relegated to Clause 7.10 Consumer Forum.**

HEADNOTE

A consumer alleging denial of an electricity connection, where the licensee demanded Rs. 56,279 as arrears plus a provisional theft assessment and the consumer contested that demand, was relegated to the Consumer Dispute Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with an expectation that the Forum would deal with any such proceedings expeditiously and in accordance with law.

FACTUAL SUMMARY

Chandra Shekhar Tiwari petitioned the Allahabad High Court alleging that U.P. Power Corporation had deprived him of an electricity connection. Counsel for the Corporation, after taking instructions, submitted that a serious question of electricity theft was involved, but the respondents would provide a connection if he paid Rs. 56,279 comprising dues until 17 October 2014 and a provisional theft assessment. The petitioner was willing to pay reasonable charges but sought to contest that disputed amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum for disputed dues and connection grievance

HOLDING

Where a consumer seeking an electricity connection contests the licensee's demand of arrears and a provisional theft assessment, the High Court will not decide the disputed quantum in writ jurisdiction and will permit the consumer to take recourse to the Consumer Dispute Redressal Forum constituted under Clause 7.10 of the U.P. Electricity Supply Code, 2005, which is expected to deal with the matter expeditiously and in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Disputed arrears and a provisional theft assessment, raised against a consumer seeking connection, were sent to the Clause 7.10 Consumer Dispute Redressal Forum instead of being decided on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED ELECTRICITY THEFT

The licensee alleged a serious question of theft; the Court did not try that allegation. ¶ 1

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS. 56,279 (DUES UNTIL 17.10.2014 PLUS PROVISIONAL THEFT ASSESSMENT)

The petitioner contested the figure; quantum was left to the Clause 7.10 Forum. ¶ 1

NOT DECIDED — WHETHER A CONNECTION HAD TO BE GRANTED INDEPENDENTLY OF THAT PAYMENT

¶ 1

